

Sabdar Ali v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 July 2025 · Writ-C No. 18752 of 2025 · **Writ disposed; supply company to decide the petitioner's cost-adjustment representation in light of clause 4.29.**

HEADNOTE

A consumer who sought to stop a neighbour's connection from a pole he claimed to have paid for was met with clause 4.29 of the U.P. Electricity Supply Code, 2005: the licensee may use that service line and apparatus to supply others if the paying consumer's supply is not affected. The Court did not restrain the connection. It directed the supply company to examine the petitioner's representation for adjustment of those expenses and to pass an order keeping the clause in view.

FACTUAL SUMMARY

Sabdar Ali sought a writ restraining the electricity authorities from giving respondent no.4 a connection from a pole he claimed to have erected at his own cost. Counsel for the supply company (respondent nos.3 and 4) relied on clause 4.29 of the U.P. Electricity Supply Code, 2005, and said drawing the new line would not affect the petitioner's supply. The petitioner then asked that the expenses he had already borne on the supply line be adjusted, pointing to representations already made to the company.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.29(b)

licensee use of consumer-paid service line for other consumers

HOLDING

Under clause 4.29 the licensee may use a service line and other apparatus paid for by a consumer to give supply to other consumers provided that consumer's own supply is not affected. The supply company was directed to examine the petitioner's representation for adjustment of the line-installation expenses he had borne and to pass an order keeping that clause in view; the writ was disposed of without an injunction against the proposed connection. ¶ 3-5

FLAG Court cited Clause 4.29 generally; quoted text is 4.29(b).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE NEIGHBOUR'S CONNECTION FROM THE POLE SHOULD BE REFUSED, AND THE AMOUNT OF ANY COST ADJUSTMENT

Operative order only requires the supply company to examine the pending representation and pass an order. ¶ 5